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Case Number: 26NWUD00440 Hearing Date: July 22, 2026 Dept: SE

DARREL WILBORN, SUCCESSOR

TRUSTEE OF THE WILBORN REVOCABLE FAMILY TRUST V. GINGER LEANE WILBORN, ET AL.

CASE NO.: 26NWUD00440

HEARING: 07/22/2026 @ 9:30 a.m.

#11

TENTATIVE ORDER

Upon the Court's own motion

for reconsideration, Plaintiff Darrel Wilborn's Motion for Summary Judgment is
DENIED.

Upon the Court's own motion

for reconsideration, Defendants Ginger Leane Wilborn, Britney Michelle
Landson-Wilborn, and Dana Kathleen Charles' Motion for Summary Judgment is
DENIED.

Background

On March 5, 2026, Plaintiff

Darrel Wilborn, Successor Trustee of the Wilborn Revocable Family Trust
(Plaintiff), filed this unlawful detainer action against Defendants Ginger
Leane Wilborn (Ginger), Britney Michelle Landson-Wilborn (Britney), Dana
Kathleen Charles (Dana) (collectively, Defendants), and Does 1 through 10,
inclusive.

Plaintiff alleges he is the owner and successor trustee of the residential property located at 12042 166th Street, Artesia, California (Premises). Plaintiff contends Defendants occupied the Premises as permissive occupants or tenants at will without a written lease and without paying rent. Plaintiff further alleges he terminated Defendants' right to possession by serving a 90-day Notice to Quit, that the notice expired, and that Defendants nevertheless remain in possession of the Premises. Plaintiff seeks possession of the Premises.

On March 23, 2026, Defendants filed an Answer asserting affirmative defenses, including retaliation, noncompliance with the Tenant Protection Act, estoppel, and that the 90-day Notice to Quit is defective because it relies on inconsistent statutory grounds for termination.

On May 11, 2026, Plaintiff filed a motion for summary judgment or, in the alternative, summary adjudication. Defendants did not file an opposition.

On May 12, 2026, Defendants filed a motion for summary judgment. On June 3, 2026, Plaintiff filed an opposition. Defendants did not file a reply.

On June 4, 2026, following a hearing on both motions, the Court denied Plaintiff's and Defendants' motions for summary judgment after finding a triable issue of material fact concerning the parties' respective ownership and possessory interests in the Premises.

On July 9, 2026, on its own motion, the Court set a hearing for reconsideration of both motions for summary judgment on July 22, 2026, and ordered the parties to file supplemental briefing no later than July 16, 2026.

On July 16, 2026, Defendants filed a supplemental memorandum in support of their motion for summary judgment.

Request for Judicial Notice

Plaintiff requests judicial notice of the Certified Quitclaim Deed dated February 7, 2011, concerning the Premises.

Plaintiff's Request for Judicial Notice is GRANTED. The Court takes judicial notice of the recorded Quitclaim Deed pursuant to Evidence Code section 452, subdivision (c). The Court takes notice of the existence, recording, and legal effect of the recorded instrument, but not the truth of any disputed factual matters contained therein.

Legal Standard

California Code of Civil Procedure section 1170.7 provides that "[a] motion for summary judgment may be made at any time after the answer is filed upon giving five days' notice. Summary judgment shall be granted or denied on the same basis as a motion under Section 437c." (Cal. Code Civ. Pro. § 1170.7.)

"In moving for summary judgment, a 'plaintiff . . . has met' his 'burden of showing that there is no defense to a cause of action if' he 'has proved each element of the cause of action entitling' him 'to judgment on that cause of action.'" (Aguilar v. Atlantic Richfield Co., 25 Cal.4th 826, 849 (as modified (July 11, 2001) (Aguilar).) The plaintiff "must present evidence that would require a reasonable trier of fact to find any underlying material fact more likely than not—otherwise, he would not be entitled to judgment as a matter of law but would have to present his evidence to a trier of fact." (Id., at 851, original italics.)

Once the plaintiff has met that burden, the burden shifts to the defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. (CCP § 437c(p)(1).) "There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (Aguilar, supra, 25 Cal.4th at 850.) The

defendant “shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (CCP § 437c(p)(1).)¿

“The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining¿if¿the papers show that there is no triable issue as to any material fact,¿the court shall consider all of the evidence set forth in the papers, except¿the evidence¿to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment¿shall¿not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact.” (Id. § 437c(c).)¿

Analysis

The Court now reconsiders both motions for summary judgment and has considered any supplemental briefing submitted by the parties, as well as the oral arguments presented at the June 4, 2026 hearing.

Plaintiff's

Motion for Summary Judgment

Plaintiff moves for summary judgment on the grounds that (1) there are no triable issues of material fact; (2) Defendants have no valid defenses to the Complaint; and (3) Plaintiff is entitled to possession of the Premises as a matter of law.

“ ‘A tenancy at will is an estate which simply confers a right to the possession of premises leased for such indefinite period as both parties shall determine such possession shall continue. ... The tenant at will is in possession by right with the consent of the landlord either express or implied, and he does not begin to hold unlawfully until the termination of his tenancy. His estate is a leasehold and he holds in subordination to the title of the landlord.’

[Citation.] And 'A permissive occupation of real estate, where no rent is reserved or paid and no time agreed on to limit the occupation, is a tenancy at will.' [Citations.]" (Borden v. Stiles (2023) 92 Cal.App.5th 337, 347–348.) "A tenancy or other estate at will, however created, may be terminated by the landlord's giving notice in writing to the tenant, in the manner prescribed by Section 1162 of the Code of Civil Procedure, to remove from the premises within a period of not less than 30 days, to be specified in the notice." (Civ. Code, § 789.)

Here, Plaintiff contends he is the owner of the Premises and the successor trustee of the Wilborn Revocable Family Trust. In support, Plaintiff submits his declaration stating that the Premises are trust property and attaches a certified copy of a 2011 quitclaim deed transferring the property into the trust. (Wilborn Decl., ¶ 1, Ex. A.) Plaintiff further declares that he permitted Ginger and Dana to occupy the Premises without a written agreement and without paying rent, that Britney later occupied the Premises without Plaintiff's permission, and that none of the Defendants ever paid rent. (Id. at ¶ 4.) Plaintiff further declares that he served Defendants with a 90-day Notice to Quit, did not waive, cancel, or modify that notice, and that Defendants remained in possession after the notice expired. (Id. at ¶ 5, Ex. B.) Plaintiff therefore contends Defendants occupied the Premises as tenants at will whose right to possession was properly terminated pursuant to Civil Code section 789.

Plaintiff also argues that Defendants' affirmative defenses lack evidentiary support and fail as a matter of law. Specifically, Plaintiff contends the Tenant Protection Act does not apply because the Premises were never rented and no rent was demanded or accepted, and further argues there is no evidence supporting Defendants' affirmative defenses of waiver, estoppel, retaliation, or other statutory violations. (Plaintiff MSJ, pp. 6-8.)

Defendant's
Motion for Summary Judgment

Defendants move for summary judgment on the grounds that Plaintiff cannot establish a superior right to

possession because Plaintiff has not demonstrated sole ownership of the Premises. Defendants contend Dana and Ginger possess claimed beneficial interests as beneficiaries of the Wilborn Revocable Family Trust and argue that the parties' competing claims to ownership and possession must be resolved, if at all, in a quiet title action rather than in this summary unlawful detainer proceeding.

Defendants contend Dana and Ginger possess beneficial ownership interests in the Premises through the Wilborn Revocable Family Trust. In support, Dana declares she has resided at the Premises for more than 15 years, that Plaintiff and his late wife represented the property would pass equally to their children through the Trust, and that she reviewed the Trust and understood it provided for an equal distribution of the trust assets upon the death of both settlors. (Charles Decl., ¶¶ 3–12.) Defendants argue these asserted beneficial interests create a dispute regarding Plaintiff's present right to possession that cannot be resolved in this unlawful detainer proceeding. Relying on *Martin-Bragg v. Moore* (2013) 219 Cal.App.4th 367 (Moore), Defendants argue that because resolution of the parties' competing claims to ownership would determine Plaintiff's right to possession, those issues must be litigated in an ordinary civil action rather than under the summary procedures governing unlawful detainer. (Defendants MSJ, pp. 4–8; Supplemental Memorandum, pp. 2–6.)

Plaintiff opposes the motion, arguing Defendants have failed to satisfy their initial burden under Code of Civil Procedure section 437c because Plaintiff, as successor trustee, holds legal title to the Premises and therefore has standing to maintain this unlawful detainer action. Plaintiff contends Defendants' claimed ownership interests as trust beneficiaries do not create a triable issue of material fact, relying on the recorded quitclaim deed transferring the Premises to the Wilborn Revocable Family Trust and the Certification of Trust identifying Plaintiff as the sole acting trustee and providing that title to trust assets is held in the name of "Darrel L. Wilborn, Trustee of the Wilborn Revocable Family Trust." (Wilborn Decl., ¶ 1, Ex. B.)

Oral Argument

At the hearing, Defendants argued that the evidence submitted by both sides created a dispute regarding the parties' respective rights to the Property that could not be resolved in an unlawful detainer proceeding. Defendants emphasized that the Property was an asset of the Wilborn Revocable Family Trust, that Plaintiff had not produced the Trust instrument, and that Defendants believed they were beneficiaries with rights to the Property based on the Trust's terms and representations made by Plaintiff and his late wife. Defendants further argued that any dispute regarding ownership and the parties' respective rights under the Trust should first be resolved in probate proceedings before an unlawful detainer action could proceed. Counsel acknowledged that no probate action had yet been filed but represented Defendants were attempting to pursue that avenue.

Plaintiff responded that the Certification of Trust sufficiently established Plaintiff's status as the surviving trustee and that disclosure of the Trust instrument was not required because Plaintiff, as a living settlor and trustee, was not authorized to disclose the Trust document. Plaintiff argued the Certification of Trust adequately reflected the Trust's current status and maintained that the Trust did not create a life estate or otherwise alter Plaintiff's authority as trustee.

Defendants'
Asserted Trust Interests Create a Triable Issue of Material Fact Regarding the Right to Possession

California unlawful detainer is governed by Code of Civil Procedure §§ 1161 et seq., which establishes a summary remedy with the sole purpose of determining the right to possession of real property. The proceeding is intentionally narrow: "ordinarily the only triable issue is the right to possession of the disputed premises, along with incidental damages resulting from the unlawful detention." (Moore, supra, 219 Cal.App.4th at 385.) "Matters affecting the validity of the trust deed or primary obligation itself, or other basic defects in the plaintiff's title, are neither properly raised in this summary proceeding for possession, nor are they concluded by the judgment." (Cheney v. Trauzettel (1937) 9 Cal.2d 158, 160.)

In Moore, the Court of Appeal held that an unlawful detainer action could not be used to summarily adjudicate a defendant's claim that the plaintiff merely held legal title to the property in trust for the defendant, where a simultaneously pending quiet title action presented complex ownership issues. (Moore, supra, 219 Cal.App.4th at 385-386.) Because resolution of the equitable ownership dispute was necessary to determine the plaintiff's right to possession, the Court concluded the title issues should have been litigated in an ordinary civil action rather than under the expedited procedures governing unlawful detainer. (Ibid.)

Similarly, in Coyne v. De Leo (2018) 26 Cal.App.5th 801, 818, the Court confirmed that "California law does not prohibit an unlawful detainer defendant from interposing a defense involving title issues, so long as the defense, if established, would result in the tenant retaining possession of the premises."

Here, Defendants contend their asserted interests under the Trust defeat Plaintiff's present right to possession and therefore present the type of title-related defense recognized in Moore and Coyne. Plaintiff disputes both the existence and legal effect of those asserted interests.

The Court finds that, on the present record, it cannot determine whether Defendants' asserted equitable interests under the Wilborn Revocable Family Trust are sufficient to defeat Plaintiff's claimed right to immediate possession or otherwise preclude Plaintiff, as successor trustee, from maintaining this unlawful detainer action. Although Plaintiff relies on the Certification of Trust and the recorded quitclaim deed to establish his authority as successor trustee, Defendants contend those documents do not resolve whether they possess present ownership or other possessory interests arising under the Trust. On the present record, the Court cannot determine the nature or legal effect of Defendants' asserted interests without venturing beyond the limited scope of this summary unlawful detainer proceeding.

Accordingly, the Court finds the record presents a triable issue of material fact concerning Plaintiff's present right to possession of the Premises. Defendants'

asserted interests under the Trust raise issues bearing directly upon Plaintiff's claimed right to immediate possession that are not appropriately resolved on the present record in the context of these cross-motions for summary judgment.

Conclusion

Based on the foregoing, upon the Court's own motion for reconsideration, Plaintiff Darrel Wilborn's Motion for Summary Judgment is DENIED.

Upon the Court's own motion for reconsideration, Defendants Ginger Leane Wilborn, Britney Michelle Landson-Wilborn, and Dana Kathleen Charles' Motion for Summary Judgment is DENIED.